TRACY HILLS II COMMUNITY ASSOCIATION
ARCHITECTURAL GUIDELINES – FORMS

FORM A: NEW OWNER TIMELINE FORM

This timeline will assist you in determining the dates you should be aware of for the first-time installation of landscape Improvements.

Deadline Date	Requirement
Deadline is six (6) months from close of escrow	Submit plans for rear yard landscape improvements.
Deadline is nine (9) months from close of escrow	Complete rear yard landscape improvements.

Application Submittal / Review Process

Owner

Completes and Forwards:

1. Design Review Application (1 copy)
2. Color Photos of Area
3. Color Photo of Front Yard Showing Entire House & Yard

Association

Receives application for completeness and forwards all applications to the Architectural Review Committee

Architectural Review Committee

The Architectural Review Committee reviews

Architectural Review Committee

Has 45 days to review and approve/deny plans

Approve Plans	Denied Plans
Returned to Owner ARC Approved Plan Letter noting any conditions that must be followed.	**Returned to Owner** ARC Letter listing why specific items are not approved and what should be changed to comply.

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FORM B: ARCHITECTURAL REVIEW APPLICATION CHECKLIST

This checklist shall be completed by the Owner and be attached to the Design Review Request Form. Failure to complete and include this checklist will cause the submittal application to be deemed an incomplete submittal. All incomplete submittals will be returned without review by the Architectural Review Committee.

SUBMITTAL FEES: $175 Minor Review Fee or $200 Major Review Fee
$250 Refundable Security Deposit

A description of what must be included on each of the forms required below may be found in the Design Guidelines. **Please check all that apply:**

PART I - ALL IMPROVEMENTS: This part lists the submittal requirements for **ALL IMPROVEMENTS** and must be included with **ANY AND ALL** submittal requests.

- ☐ Completed Design Review Application Checklist (Form B)
- ☐ Completed Design Review Request Form (Form C)
- ☐ Plot Plan
- ☐ A signed copy of the Water Quality Management Best Management Practice Guidelines (Form G)

PART II – LANDSCAPE AND HARDSCAPE IMPROVEMENTS: This part must be completed for improvements involving any landscaping (grading, drainage, hardscape, irrigation, plumbing and lighting).

- ☐ Site Color Photos (Front Yard, Side Yards, Back Yard)
- ☐ Landscape Construction Plan and Details
- ☐ Grading and Drainage Plan
- ☐ Irrigation Plan
- ☐ Planting Plan
- ☐ Landscape Lighting Plan
- ☐ Site Color Photos
- ☐ Exterior Elevations/Building Sections
- ☐ Floor Plan (must be included on a Plot Plan)
- ☐ Roof Plan
- ☐ Finish and Materials Schedule

PLEASE NOTE THAT THIS PROCESS CAN TAKE ABOUT 30 DAYS.
ANY CHANGES MADE AFTER SUBMITTAL MAY DELAY THE PROCESS.

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ARCHITECTURAL GUIDELINES – FORMS

FORM B: ARCHITECTURAL REVIEW APPLICATION CHECKLIST
(Continued – Part III)

I (WE) UNDERSTAND AND AGREE THAT:

No work on any improvement described on my Design Review Request Form shall commence until written approval of the Architectural Review Committee has been received. Proposed improvements may require a permit from the City Building Department or other government agencies and Owner will obtain all required permits before commencing any work. No work will change the existing drainage patterns. Any changes in the existing drainage pattern may result in substantial damage to adjacent properties, for which Owner will be held responsible. The conditions and restrictions noted in the Design Guidelines and Declaration shall apply to any approval.

Owner assumes the responsibility for any work, including conformity of completed improvements to the Plans and Specifications as approved by the Board or the Architectural Review Committee and the satisfaction of any time limitations for their completion as may be specified in conjunction with such approval under the above proposed modifications/improvements.

Further, Owner assumes full responsibility for any work and that any contractor accomplishes which may, in the future, adversely affect adjacent properties and/or Association Property. Owner will assume responsibility for all future maintenance of the modifications and/or improvements. Owner shall complete all improvements within six (6) months of approval, other than the initial landscaping for the entire rear lot, which must be completed within nine (9) months of Close of Escrow.

Signature: _____ Date: _____

Signature: _____ Date: _____

Do not write below this line (For Board/Architectural Review Committee use only)

Form B Part I Received ☐

Form B Part II Received ☐

Form B Part III Received ☐

Form B Signed ☐

Form C Completed ☐

Accepted as a Complete Package Date: _____

Accepted by Association Staff Name: _____

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ARCHITECTURAL GUIDELINES – FORMS

FORM C: ARCHITECTURAL REVIEW REQUEST FORM

Name: _____ Date: _____

Property
Address:_____

Mailing Address (if different from above): _____

Phone: _____ Email: _____

Type of Work:

(Please Check one or more)

Architectural ☐ Landscape ☐ Hardscape ☐ Water Feature ☐ Patio Cover ☐ Lighting ☐

Solar Equipment ☐ Other ☐ _____

Mail to:

Tracy Hills II Community Association
c/o Seabreeze Management Company
4305 Hacienda Drive, Suite350
Pleasanton, CA 94588
Attn: Belinda Prunty
Phone: (925) 217-8695
Email: TracyHills2@seabreezemgmt.com

Do not write below this line (For Board/Architectural Review Committee use only)

Architectural Review Committee's response is subject to notes on plan and Architectural Review Committee approval letter.

☐ APPROVAL

☐ APPROVED WITH CONDITIONS NOTED ON CHECKLIST

☐ DISAPPROVED WITH COMMENTS NOTED ON CHECKLIST

☐ RESUBMIT ITEMS LISTED:

_____
_____
_____
_____
_____

☐ RESUBMIT WITH INCOMPLETE ITEMS LISTED:

_____
_____
_____
_____
_____
_____

TRACY HILLS II COMMUNITY ASSOCIATION
ARCHITECTURAL GUIDELINES – FORMS

FORM C: DESIGN REVIEW REQUEST FORM (Continued)

The Architectural Review Committee has reviewed the proposed improvements to determine whether they are aesthetically compatible with the architectural scheme of the Community and consistent with the Declaration and the Design Guidelines. These plans have not been reviewed for construction, safety, function, views, plant material survivability, privacy, or any and all engineering requirements including, but not limited to, soils, geotechnical, drainage, structural, mechanical or electrical. The Owner understands that he/she must comply with the Design Guidelines and the Declaration. The Architectural Review Committee has not considered whether, and its approval does not indicate that the proposed improvements are in compliance with applicable laws, ordinances, regulations and codes. The Owner must obtain all necessary building permits for applicable structures from the applicable public agency. Please be advised that the plans and specifications are not approved for (a) engineering design, (b) compliance with zoning and building codes, and other applicable statues, ordinances or governmental rules or regulations, (c) compliance with the requirements of any public utility, (d) consistency with easements or other matters of record, or (e) preservation of any view. By approving such plans and specifications, the Architectural Review Committee, the members thereof, the Association, the Board, Declarant, and their respective agents, employees and consultants do not assume any liability or responsibility relating thereto (including, without limitation, any defect in any Improvements constructed from such plans and specifications, or for any obstruction or impairment of view caused or created as the result of any Improvements approved by the Architectural Review Committee).

Sincerely,

TRACY HILLS II COMMUNITY ASSOCIATION

_____
Signature

_____ _____
Print Name and Title Date

TRACY HILLS II COMMUNITY ASSOCIATION
ARCHITECTURAL GUIDELINES – FORMS

FORM G: WATER QUALITY MANAGEMENT BEST MANAGEMENT PRACTICE GUIDELINES

In order to mitigate the potential water pollution concerns associated with human habitation, the California Water Quality Management Board has set strict guidelines for the Community regarding the effects of runoff and storm water pollution.

One of the most sensitive and carefully monitored phases of the Community is the construction period. The requirements are not merely restricted to the development and construction managed by the Community's builder – construction by Owners will also be scrutinized and subject to very severe fines.

To be certain that you understand and accept responsibility for any violations associated with your proposed Improvements; each Owner is required to review this section. It must be signed and returned by you as a required part of your application submitted to the ARC. You must also make a copy for and provide this document to any contractors or consultants whom you employ to ensure their compliance with these requirements, and you should make them responsible for any fines which you may incur as a result of their violation of same. The Association will monitor construction activities as well as check on Best Management Practices; however, the Owner will be solely responsible for any fines incurred by the Association as a result of infractions initiated at Owner's Residence. The Association will take whatever legal action is necessary to ensure compliance and collect for infractions charged to the Association as a result of Owner's, or Owner's contractor's or consultant's, acts or negligence or failure to comply with these requirements.

The following requirements are not meant to be all-inclusive of Regional Water Quality Control Board requirements or of any other agency. It should be understood that any applicable agency's rules and requirements may/will be applied to the activities of any Owner and may supersede these Guidelines. All resulting fines imposed on the Association, or the Owner as a result of any violation of Applicable Laws will be the responsibility of the Owner and the Owner shall indemnify, defend and hold harmless the Association from any such fines or penalties incurred as a result of any violation by Applicable Laws, including without limitation any guidelines or restrictions provided by the California Water Quality Management Board.

1. No construction materials, chemicals or substances may be disposed of or poured into the area drains, street and/or gutter.
2. Area drains should be shielded and/or covered to ensure that construction by-products and/or chemicals are not washed into them.
3. No tools or equipment may be rinsed off on the property in a manner that causes the water to reach the area drains, street and/or gutter.
4. No unprotected stockpiling of sand, gravel, dirt, or other materials in the street is permitted.
5. Any sand, gravel, dirt or other materials piled/stored on the driveway or Owner's Residential Lot must be effectively covered to prevent rain or irrigation water runoff from carrying material residue into the area drains, street and/or gutter.
6. In the event of a runoff event or spill, sandbags must be strategically placed to ensure that no substance makes its way into the area drains and/or storm drains.
7. Hoses and/or irrigation should not be allowed to run in a manner that causes water or any substance to wash into the area drains, street and/or gutter.
8. Containers for hazardous materials such as paint, concrete, chemicals, etc. must be in good condition and not allowed to spill or leak onto the ground or be washed into the area drains, street and/or gutters.
9. No products or chemicals should be buried for disposal.
10. Trash and debris should be properly contained and disposed of off-site.

FORM G: WATER QUALITY MANAGEMENT BEST MANAGEMENT PRACTICE GUIDELINES (Continued)

11. No vehicles or equipment should be allowed to leak oil anywhere.
12. No portable restroom facility may be allowed in the street and those stored on the Owner's Residential Lot must be in proper working order so that no waste leaks.
13. Pesticides and/or fertilizers must be monitored and properly used and stored.
    No irrigation runoff should reach the street and/or gutter, as such runoff may carry chemicals from pesticides, fertilizers, etc., into the storm drain.

THE BASIC GOAL IS TWO-FOLD:

1. No materials, other than rainwater, should be allowed to flow into the area drains and/or storm drains.
2. No chemicals or products should be allowed to contaminate the groundwater supply.

In addition to the foregoing, you have previously been provided with a set of educational materials attached to the Association Rules regarding best practices associated with water quality and associated issues. You should carefully review these materials and provide them to any contractors or consultants who will be performing work on your Residential Lot or who will be entering the Community at your request. As referenced above, you are responsible for any violations of Applicable Laws by such individuals or entities.

ACCEPTANCE AND ACKNOWLEDGMENT

I am the homeowner of record for the residence noted below. I have read and understand the Water Quality Management Best Management Practice Guidelines and agree to inform my contractors and consultants of same and to diligently pursue their compliance with such guidelines. I also understand my liability in the event of an infraction resulting in a fine against me and/or the Association. I understand that I will be held personally responsible for any fines and/or fees levied against me and/or the Association as a result of any infractions caused by me, my contractors or my consultants in connection with the construction, maintenance, or any other activities on my Residential Lot.

Signature: _____ Date: _____

Signature: _____ Date: _____

TRACY HILLS II COMMUNITY ASSOCIATION
ARCHITECTURAL GUIDELINES – FORMS

FORM E: NOTICE OF COMPLETION
Owner shall complete the following:

I hereby certify that all work has been completed and done in substantial compliance with the approved Plans and Specifications and the Design Guidelines.

Name: _____ Date: _____

Property Address: _____ Mailing Address (if different):_____

Phone: _____ Email: _____

Owner Signature: _____ Owner Signature: _____

Type of Work:

(Please Check one or more)

Architectural ☐ Landscape ☐ Hardscape ☐ Water Feature ☐ Patio Cover ☐ Lighting ☐

Solar Equipment ☐ Other ☐_____

Submit color photographs of all installed improvements including retaining wall systems, drain inlets, light fixtures, equipment areas, pools, patio covers, backs of fireplaces, equipment areas and trees/plantings.

Do not write below this line (For Board/Architectural Review Committee use only)

The Architectural Review Committee conducted the Final Inspection by:

☐ Reviewing the Owner submitted photographs ☐Conducting a site visit

The Architectural Review Committee recommends the following:

☐ APPROVED: Final inspection is complete, and the Improvements are in substantial conformance with the approved plans and the Design Guidelines.

☐ DISAPPROVED: The Improvements are **not** in substantial conformance with the approved plans, specifications and/or Design Guidelines. The Applicant must complete/modify/remove the items noted below. After all items have been corrected, re-submit to the ARC for final approval.

_____ _____

ARC Authorized Representative Signature **Date**

Improvements to be removed or modified by Owner:

_____

_____

_____

_____

_____

_____

_____

If no Improvements must be removed or modified, insert "None."

TRACY HILLS II COMMUNITY ASSOCIATION
ARCHITECTURAL GUIDELINES – FORMS

FORM F: APPEAL REQUEST

Name: _____ Date:_____

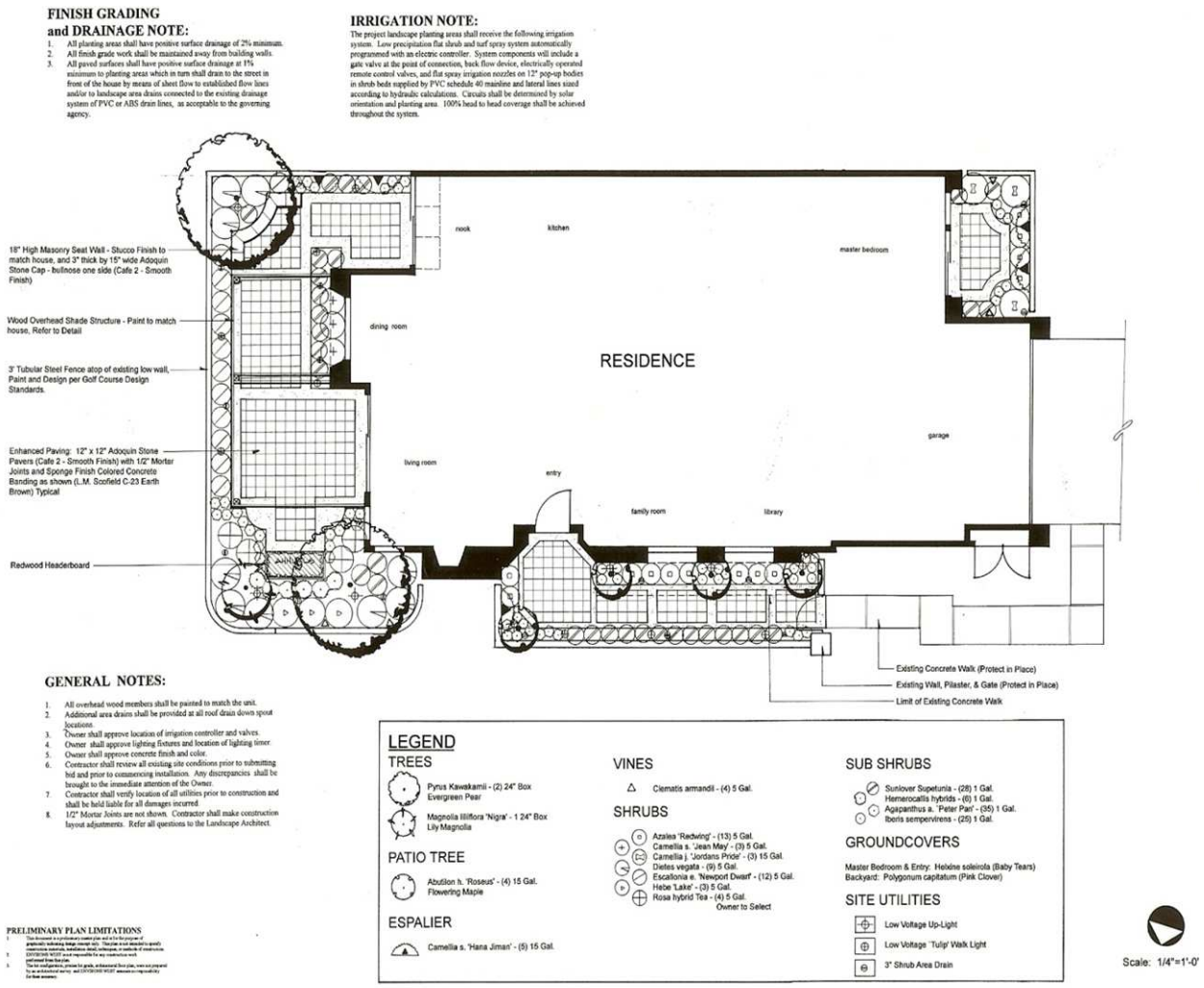
Property Address:_____ Mailing Address (if different): _____

Phone: _____Email: _____

Owner Signature: _____Owner Signature:_____

Describe appeal request:

Exhibit A: Sample Landscape Plan Submittal Document



Note: This exhibit is intended to illustrate graphic and information requirements only. Plan does not reflect a product in the Community.